

Smt Saiyyeda Bibi v. Purvanchal Vidyut Vitran Nigam Ltd and 2 Others

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 1 February 2023 · Writ - C No. 2472 of 2023 · **Petition disposed; recovery withdrawn; fresh order under Supply Code 2005**

HEADNOTE

A writ against a 6 June 2012 demand for electricity dues and compounding charges in a theft case was disposed of after Purvanchal Vidyut Vitran Nigam Ltd withdrew the recovery and undertook to pass a fresh order after hearing. The Court left that fresh order to the procedure prescribed under the Electricity Supply Code, 2005, and did not examine the demand.

FACTUAL SUMMARY

Smt Saiyyeda Bibi challenged a 6 June 2012 demand notice of Purvanchal Vidyut Vitran Nigam Ltd for electricity dues and compounding charges in a theft case. On 25 January 2023 the licensee's counsel sought time to say whether the recovery had been withdrawn. On 1 February 2023 he produced the Executive Engineer's letter of 31 January 2023, already posted to her, stating that the recovery stood withdrawn and that a fresh order would be passed after she was heard. A copy was handed to her counsel in court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Fresh order after withdrawal of a theft recovery

HOLDING

Once the licensee withdraws the impugned recovery of electricity dues and compounding charges in a theft case and undertakes to pass a fresh order after hearing, nothing remains to be decided in the writ. Any such fresh order must follow the procedure prescribed under the Electricity Supply Code, 2005. ¶ 2

FLAG The order invokes the Electricity Supply Code, 2005 without numbering a clause.

PRINCIPLE TAGS

UP-2005::procedure The writ was disposed because the licensee had withdrawn the 2012 theft recovery; the Court required any fresh order, after hearing, to follow the procedure prescribed under the Electricity Supply Code, 2005. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 6 JUNE 2012 FOR ELECTRICITY DUES AND COMPOUNDING CHARGES WAS LAWFUL

The licensee withdrew the recovery. The Court did not examine the notice and left any fresh order, after hearing, to the Supply Code procedure. ¶ 2